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Athens, 28-12-2023

Protocol No.: 3341

DECISION 38/2023

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened at the invitation of its President in a session on Tuesday, 13-06-2023, at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinouidakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/749/21-02-2022, A (hereinafter referred to as the "complainant") appealed to the Authority against the company Google LLC (hereinafter referred to as "Google" or "the company") for the non-satisfaction of the right to erasure (right to be forgotten) of results appearing in Google's search engine based on the complainant's name. Specifically, the complainant states that she submitted request No. ... to Google on ... for the deletion of articles referring to her, as the nature of the information in question is outdated, the information is inappropriate and has ceased to be relevant, there are no public interest reasons for their retention, and the complainant, as a citizen of an EU member state, wishes to have the data deleted from her digital past through the removal of specific references to her name from the results of the indexes of an online search engine (see the following links), as the right to be forgotten derives directly from primary and secondary European law:

1. ...
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39. ...

The complainant states that on ... the company responded that "the contested publications cannot be deleted from the search engine for reasons of public interest."

The Authority, in the context of examining the above complaint, summoned the companies Google LLC, as the operator of the Google search engine, and Google Hellas with protocol No. G/EKSE/954/21-04-2022, to provide their views on the allegations, fully justifying their negative response for each link separately. The company Google LLC responded to the Authority with protocol No. G/EIS/7005/13-05-2022, stating that the complainant submitted on ... her request with reference number ... to Google, requesting the removal from the search results based on her name of the links (URLs) mentioned therein, invoking the right to be forgotten, and the company responded to the complainant on ... that it would not satisfy the request for deletion of the links, as the contested links relate to matters of substantial public interest regarding her professional life. In its above document to the Authority, the company, citing some of the criteria mentioned in the Guidelines of the Article 29 Working Party, namely the criteria of whether the subject plays a role in public life and whether the data is accurate and pertains to the professional life of the subject, concluded that the contested information remains relevant, pertains to the complainant's professional activity of public interest, and that no inaccuracy of these was proven. Finally, in the same document, the company states that the content of the following six (6) links does not refer to the complainant and will proceed to delete them from the list of search results in the search engine that appear based on her name:

1. ...
2. ...
3. ...
4. ...
5. ...
6. ...

In light of the above, the Authority, with protocol Nos. G/EKSE/608/08-03-2023 and G/EKSE/604/08-03-2023, summoned the aforementioned companies and the complainant, as legally represented, to attend, via teleconference, the plenary session of the Authority on 14-03-2023, in order to discuss the complaint in question. At the above session...

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Present were A and her attorney Panagiota Dikalioti with registration number ... from Kalamata, and on behalf of the company Google LLC, the attorneys Harikleia Daouti (registration number ...) and Evangelia Tsirigoti (registration number ...). The attendees presented their views and were granted a deadline for the submission of briefs, which they submitted in a timely manner. The company being complained about submitted the brief with reference number G/EIS/2362/30-03-2023, in which it reiterated what it had stated in the initial brief and added that the complainant, according to the contested information, is said to be the beneficiary of the potential incident ... that took place at ..., who, in the position she held, was compensated with public funds derived from the taxation of citizens

..., who have an interest in being informed about the manner of her appointment, especially in the event that there are suspicions that this did not occur transparently. Furthermore, the company stated that regarding the question posed by the Guidelines of the Working Group of Article 29, whether the data in question pertains to the professional life of the subject, the company had invited the complainant on ... during the evaluation of the request for deletion with reference number ... to provide evidence regarding her current professional status or proof that she has left the position of employment referred to in the contested links; however, the complainant did not provide any evidence and, consequently, in the absence of evidence proving that the complainant has changed her professional field, the contested content should not be deleted from the search engine results, as it remains relevant to the public interest for information. The fact that the complainant claims that while seeking employment, the contested publications prove discouraging for potential employers demonstrates that the contested information is entirely relevant to the public interest and is by no means outdated. The company states, on the one hand, that regarding the issue of whether the data has a disproportionately negative impact on the complainant's private life, the latter does not substantiate that the rejections for job positions are due to the publications and does not clarify what transpired from ... when the employment contract was terminated until ..., that is, five (5) years later, when she submitted the request for deletion claiming belatedly that she suffers harm, and on the other hand, that the nature of the contested content as the subject of journalistic research and processing strengthens its position that the content in question should not be deleted from the search engine.

The complainant submitted the brief with reference number G/EIS/2389/31-03-2023, in which she stated that the ... of the former ... has no relation to the said ... space. The complainant provided her CV and stated that due to the qualifications she possessed, at the beginning of the period ... in the year ... she was offered and accepted the position of Assistant to the and that the said employment contract was terminated on ... and not at the end of the period. However, since ... publications have appeared online with the complainant's details referring to a ... system, without mentioning the fulfillment of the substantive and formal conditions, which have caused harm to her professional career, as they prevented her hiring due to her connection with the specific ... which has been characterized as ..., a fact for which some potential employers informed her, and she submits to the Authority electronic messages she has sent to potential employers with her CV attached.

Regarding the request for deletion under consideration that she submitted to the company, she states that it should be granted, as she is not a person of public interest and relevance and has never held a public office, while the information contained in the contested publications from ... is already outdated and not updated, there are no grounds of public interest for their retention, and due to the fact that it becomes impossible to find work, her right to privacy and primarily to free access to the labor market is excessively infringed, resulting in her financial distress with consequences for her psychological state, while she lists thirty-five (35) of the initially thirty-nine (39) links for deletion.

The Authority, after examining all the elements of the file and those arising from the hearing before it, the briefs, and the statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion, **CONSIDERED IN ACCORDANCE WITH THE LAW**

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1. Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the implementation of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

2. Whereas Google LLC, based in the United States of America, with its letter No. G/EIS/10060/14-12-2018, informed the Authority that, although Google Ireland will be the data controller for user data collected and processed when users interact with Google's services—including data collected through the Google search engine, where users choose to save activity data or search history in their accounts—Google LLC will continue to be the data controller for the classified content (index) of the Google search engine and will manage the deletion process within the framework of the

right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing for the satisfaction of the right to deletion (to be forgotten) as per Article 17 of the GDPR are fully determined by Google LLC, as it states, whose establishment is located outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity under consideration, the "one-stop-shop" mechanism established by the GDPR as per Articles 56 and 60 does not apply, and thus, according to the provisions of Articles 55 paragraph 1, 2 paragraph 1, and 3 paragraph 2 of the GDPR and 13 paragraph 1 letter (z) of Law 4624/2019, the Authority has the competence to address the complaint of A regarding the violation of the right to deletion.

3. Whereas the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for deletion of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the classified content (index) of the Google search engine.

4. Whereas according to Article 17 paragraph 1 of the GDPR, "the data subject has the right to request from the data controller the deletion of personal data concerning them without undue delay, and the data controller is obliged to delete personal data without undue delay, if one of the following grounds applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed, [...], c) the data subject objects to the processing pursuant to Article 21 paragraph 1 and there are no overriding legitimate grounds for the processing or the data subject objects to the processing pursuant to Article 21 paragraph 2, [...]." In paragraph 3 of the same article, it is stated that "paragraphs 1 and 2 do not apply to the extent that the processing is necessary: a) for the exercise of the right of freedom of expression and information [...]."

5. Whereas according to the aforementioned Article 17 of the GDPR, as interpreted in content by Guidelines 5/2019 of the European Data Protection Board (EDPB), the data subject has the right to request from the data controller the deletion of personal data concerning them without undue delay, and the data controller is obliged to delete personal data without undue delay, if one of the grounds mentioned in Article 17 of the GDPR applies. The EDPB emphasizes that, in cases where the deletion request is made for the first reason, namely that the data subject requests the deletion...

1 Guidelines 5/2019 of the European Data Protection Board regarding "the criteria governing the right to be forgotten under the GDPR in the context of search engines."

2 See Guidelines 5/2019 paragraph 19.

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of the search results, when the personal data of the data subject are no longer necessary in relation to the purposes, the search engine must ensure a balance between the protection of privacy and the rights of Internet users when accessing information. In particular, it should be assessed whether, over time, the personal data have become outdated or have not been updated. Furthermore, the EDPB3 states that in the event that the deletion request is made for the third reason, namely that the data subject objects to the processing, then the GDPR provides stronger guarantees to data subjects than Directive 95/46, because the right to object under the GDPR does not limit the grounds on which data subjects can request deletion under Article 17(1) of the GDPR. The data subject may object to the processing "on grounds relating to his or her particular situation," without needing to demonstrate "compelling and legitimate grounds," as was required by Directive 95/46. The GDPR shifts the burden of proof and provides a presumption in favor of the data subject, obliging the data controller (in this case, Google) to prove the compelling and legitimate grounds that make the processing absolutely necessary (Article 21(1) GDPR). Consequently, when a search engine provider receives a deletion request today based on the particular situation of the data subject, it must delete the personal data in accordance with Article 17(1)(c) of the GDPR, unless it is able to prove that there are "compelling and legitimate grounds" for including the specific search result, which in conjunction with Article 21(1) constitutes "compelling and legitimate grounds (...) which override the interests, rights, and freedoms of the data subject."

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6. In the case under consideration, the company stated in the submissions it made to the Authority before and after the discussion of the case that it would delete the following links from the list of search results displayed based on the complainant's name, as the content of the first six (6) does not refer to the complainant, while the last two (2) links refer to websites that do not display content or display content that does not include the complainant's name:

1. ...
2. ...
3. ...
4. ...
5. ...
6. ...
7. ...
8. ...

However, following the Authority's search on 08-06-2023 of the publications in the above links under points 1 to 4, it was found that they had the same content as the other links under consideration referring to the complainant and that the publications contained in the links under points 3 and 4 mistakenly refer to "B" instead of the correct "A." It is also noted that the link mentioned under point 8 by the company was not included in the complaint file submitted to the Authority. In any case, however, following the Authority's search on the same day, the above links under points 1 to 8 did not appear as results in the Google search engine, based on the complainant's name.

7. For the remaining thirty-two (32) links, the company refuses to delete them from the list of results of the Google search engine that appear based on the complainant's name, as it argues that the contested information remains current, relates to the complainant's professional public interest activity, and its inaccuracy has not been proven:

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8. According to the case file, the aforementioned links contain publications from ... -except for link no. 29 which leads to a publication from ... with the same content- that concern the professional life of the complainant in relation to her employment contract as Assistant to ... which was in effect from ... to ..., when it was terminated without the ... period being completed, which ended in the year ..., while there is no indication of any renewal or continuation of this professional path. The complainant, although she held a paid position at ... from ... to ... and the transparency regarding the hiring of individuals in such positions is of public interest, it does not appear that she has in any way continued the same or similar employment in any public position or organization after January Considering that the complainant -as the person who is the cause for the publication of the said information- completed her ... term in the year ... and has since become independent from the ... field ..., the said information can no longer be characterized as current that interests the public. Therefore, weighing between the right to public information and the protection of personal data, it appears that on the one hand, the right to the protection of personal data prevails in light of the aforementioned.

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findings of the Authority. On the other hand, there are disproportionately adverse effects on the private and particularly on the professional life of the complainant, mainly due to the difficulty she faces in finding employment, and the overall negative impact that is exacerbated by the easy access of the public to the aforementioned outdated and irrelevant information.

Therefore, the Authority deems that the request of the complainant to the company Google LLC, as the data controller, for the deletion of links numbered 1 to 32 (see above paragraph 7) from the list of results in the Google search engine that appear based on the search criterion of the complainant's name should be accepted.

Based on the above, the Authority unanimously decides that the mentioned order in the operative part should be issued to the respondent, as the data controller, to comply with the complainant's request for deletion.

FOR THESE REASONS

The Authority:

Orders, in accordance with the provision of Article 58(2)(c) of Regulation (EU) 2016/679, the company Google LLC, as the data controller, to immediately remove-delete the links referred to above in paragraph 7 as results based on the search criterion of the complainant's name in the Google search engine.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou